

		Plaintiff to give notice.
8	Third Laguna Hills Mutual vs Angel 2023-01359717	Motion for OSC re: Contempt This motion is off calendar with the Notice of Withdrawal filed on 12/4/2024.
9	Khanjan vs Vedadi 2022-01284292	Case Management Conference This case is related to number 10 below. Regardless as to whether the parties submit on the tentative and/or the tentative becomes the order of the Court, the parties through counsel are required to attend the Case Management Conference, either remotely or in the courtroom.
10	Vedadi vs Khanjan 2023-01313607	Motion to Strike – Anti SLAPP Defendant Reza Khanjan’s Motion to Strike Plaintiffs’ Complaint under the Anti-SLAPP Statute is GRANTED. <i>Code of Civil Procedure</i> section 425.16 (b)(1) states, “A cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” “Section 425.16 posits ... a two-step process for determining whether an action is a [strategic lawsuit against public participation]. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity.... If the court finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim.” <i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88. “Only a cause of action that satisfies both prongs of the anti-SLAPP statute – i.e., that arises from protected speech or

petitioning and lacks even minimal merit – is a SLAPP, subject to being stricken under the statute.” *Id.* at 89.

A defendant has the initial burden of demonstrating the suit arises from conduct described in *Code Civ. Proc.* § 425.16, and that it is not subject to the exceptions contained in *Code Civ. Proc.* § 425.17. *Brill Media Co., LLC v. TCW Group, Inc.* (2005) 132 Cal.App.4th 324, 330. Defendant need only make a prima facie showing of protected activity under Section 425.16, and then the burden shifts to plaintiff to establish no such protection exists. *Code Civ. Proc.* § 425.16 (b), and *Governor Gray Davis Committee v. American Taxpayers Alliance* (2002) 102 Cal.App.4th 449, 458 to 459. Once the burden shifts, plaintiff must demonstrate the complaint is both legally sufficient and supported by prima facie showing of facts to sustain a favorable judgment. *Premier Medical Management Systems, Inc. v. California Insurance Guaranty Association* (2006) 136 Cal.App.4th 464, 472.

Step One – Protected Activity:

“The sole inquiry under the first prong of the anti-SLAPP statute is whether the plaintiff’s claims arise from protected speech or petitioning activity. *Castleman v. Sagaser* (2013) 216 Cal.App.4th 481, 490–491.

Here, Plaintiffs’ claims arise from protected speech activity under *Code of Civil Procedure* section 425.16(e)(3).

The Statement was Made in a Public Forum

Code of Civil Procedure section 425.16(e)(3) states the following statements are protected: “any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest.”

“Unlike the first and second category of statement or conduct protected by section 425.16, the third and fourth categories protect only statements or conduct connected to an issue of public interest. Beyond that requirement, however, these categories are quite broad, applying by their terms to any statements made in a place open to the public or in a public forum, or any conduct engaged in, in furtherance

	of the rights of petition or free speech.” <i>Wilbanks v. Wolk</i> (2004) 121 Cal.App.4th 883, 893. <i>Demetriades v. Yelp, Inc.</i> (2014) 228 Cal.App.4th 294, 310, states, “[. . .] Yelp’s Web site is a public forum and contains matters of public concern in its reviews of restaurants and other businesses. . . .” <i>Abir Cohen Treyzon Salo, LLP v. Lahiji</i> (2019) 40 Cal.App.5th 882, 887–888, states: “Among other things, the anti-SLAPP law defines “protected activity” to include “any written ... statement ... made in a place open to the public or a public forum in connection with an issue of public interest.” (§ 425.16, subd. (e)(3).) As neither party disputes on appeal, reviews posted to an Internet website meet this definition of protected activity. (E.g., <i>Chaker v. Mateo</i> (2012) 209 Cal.App.4th 1138, 1145-1147, 147 Cal.Rptr.3d 496; <i>Demetriades v. Yelp, Inc.</i> (2014) 228 Cal.App.4th 294, 310, 175 Cal.Rptr.3d 131.)” In <i>Barrett v. Rosenthal</i> (2006) 40 Cal.4th 33, 41, footnote 4, the California Supreme Court stated, “Web sites accessible to the public, like the “newsgroups” where Rosenthal posted Bolen’s statement, are “public forums” for purposes of the anti-SLAPP statute. [Citations].)” <i>Wong v. Jing</i> (2010) 189 Cal.App.4th 1354, 1366, holds: “It is settled that ‘Web sites accessible to the public ... are public forums for purposes of the anti-SLAPP statute.’ [Citations]” Under the foregoing authority, Defendant’s online Yelp review of Plaintiffs’ business in this case was made in a “public forum” for purposes of section 425.16(e)(3). <u><i>The Statement Concerned a Matter of Public Interest</i></u> Defendant’s Yelp review was connected with a matter of public interest under section 425.16(e)(3). <i>Nygard, Inc. v. Uusi-Kerttula</i> (2008) 159 Cal.App.4th 1027, 1039 (<i>Nygard</i>), holds, “Section 425.16 does not [expressly] define ‘public interest,’ but its preamble states that its provisions ‘shall be construed broadly’ to safeguard ‘the valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances.’ (§ 425.16, subd. (a).)” In <i>Nygard</i>, the court held that “ ‘an issue of
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		public interest’ ... is any issue in which the public is interested. In other words, the issue need not be ‘significant’ to be protected by the anti-SLAPP statute—it is enough that it is one in which the public takes an interest.” <i>Id.</i> at p. 1042. <i>Wong v. Jing, supra</i>, at 1366-1367 holds: “[A]lthough ‘not every Web site post involves a public issue’ (<i>D.C. v. R.R.</i> (2010) 182 Cal.App.4th 1190, 1226, 106 Cal.Rptr.3d 399), consumer information that goes beyond a particular interaction between the parties and implicates matters of public concern that can affect many people is generally deemed to involve an issue of public interest for purposes of the anti-SLAPP statute. (Compare, e.g., <i>Carver v. Bonds</i> (2005) 135 Cal.App.4th 328, 343–344, 37 Cal.Rptr.3d 480 [newspaper article about medical practitioner involved issue of public interest where information would assist others in choosing doctors]; <i>Wilbanks v. Wolk, supra</i>, 121 Cal.App.4th at p. 898, 17 Cal.Rptr.3d 497 [statements about insurance broker involved issue of public interest because they constituted a consumer warning to others with similar problems]; <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 564, 566–567, 92 Cal.Rptr.2d 755 [claim that manufacturer disseminated false information concerning effectiveness of drug used by many was an issue of public interest]; with <i>Dyer v. Childress</i> (2007) 147 Cal.App.4th 1273, 1280, 55 Cal.Rptr.3d 544 [false portrayal of real person in a movie not an issue public interest]; <i>Weinberg v. Feisel</i> (2003) 110 Cal.App.4th 1122, 1132, 2 Cal.Rptr.3d 385 [published allegation of theft by one token collector against another not an issue of public interest]; <i>Rivero v. American Fed. Of State, County & Mun. Employees, AFL–CIO</i> (2003) 105 Cal.App.4th 913, 924, 130 Cal.Rptr.2d 81 [information published in union newspaper about termination of person who supervised eight people not an issue of public interest].)” Here, the first amended complaint alleges Defendant made the following assertions in his Yelp review(s): • “Dr. Verdadi (sic) does not know what malpractice insurance is so I’m assuming he does not have what he does not know.” • “[Dr. Vedadi is] deceitful...”
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	• “2 other vets from other hospitals said the dog would have survived if it was treated on the day we came to [Dr. Vedadi].” • “Both [vets] said they would never advise outpatient with such a small dog” • “[Dr. Vedadi] gave an option that [he] knew never had a “50-50” chance of success.” • “As result of [Dr.Vedadi’s] delay and negligent advice, our dog died when proper treatment was given at reputable hospital.” • “Advice caused delay in proper treatment and by the time we obtained second opinion it was too late.” • “Dog died but could have survived if treated properly according to 2 other vets.” (Complaint, ¶ 15.) Defendant’s alleged statements include information which is of public interest because such information is sufficiently broad and relevant to Plaintiffs’ competence that it could assist others in choosing a veterinary clinic. <i>Carver v. Bonds</i> (2005) 135 Cal.App.4th 328, 344 [“Since the statements at issue served as a warning against plaintiff's method of self-promotion, and were provided along with other information to assist patients in choosing doctors, the statements involved a matter of public concern”]; <i>Wilbanks v. Wolk</i> (2004) 121 Cal.App.4th 883, 900 [“Wolk's statements were a warning not to use plaintiffs' services. In the context of information ostensibly provided to aid consumers choosing among brokers, the statements, therefore, were directly connected to an issue of public concern.”] Here, Defendant’s alleged statements concern Plaintiffs’ alleged competence and the quality of Plaintiffs’ advice regarding veterinary care. These statements are the type of warning to other consumers that California courts have held to constitute protected speech. Therefore, Defendant has established the applicability of the first anti-SLAPP prong because he has shown the Yelp review constituted protected speech activity under <i>Code of Civil Procedure</i> section 425.16(e)(3).
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Commercial Speech Exemption Does not Apply

Plaintiffs contend the commercial speech exemption of *Code of Civil Procedure* section 425.17 applies. Section 425.17(c) states the following:

“(c) Section 425.16 does not apply to any cause of action brought against a person primarily engaged in the business of selling or leasing goods or services, including, but not limited to, insurance, securities, or financial instruments, arising from any statement or conduct by that person if both of the following conditions exist:

(1) The statement or conduct consists of representations of fact about that person's or a business competitor's business operations, goods, or services, that is made for the purpose of obtaining approval for, promoting, or securing sales or leases of, or commercial transactions in, the person's goods or services, or the statement or conduct was made in the course of delivering the person's goods or services.

(2) The intended audience is an actual or potential buyer or customer, or a person likely to repeat the statement to, or otherwise influence, an actual or potential buyer or customer, or the statement or conduct arose out of or within the context of a regulatory approval process, proceeding, or investigation, except where the statement or conduct was made by a telephone corporation in the course of a proceeding before the California Public Utilities Commission and is the subject of a lawsuit brought by a competitor, notwithstanding that the conduct or statement concerns an important public issue.”

Here, Plaintiffs allege Defendant was a “proxy competitor” seeking to transfer business from Plaintiffs to their competitor. However, Plaintiffs do not allege any specific facts, or present any evidence, to support this theory. The evidence shows Defendant was merely a disgruntled customer. There is no evidence Defendant had ties to Plaintiffs’ competitor, other than that he apparently obtained a second opinion from the competing clinic and believed he could have obtained better care for his pet at the competing clinic. Therefore, Defendant recommended other pet owners go to Plaintiffs’ competitor. Significantly, Plaintiffs have not shown Defendant was in the business of selling veterinary services. Therefore, this exemption does not apply.

Step Two – Probability of Prevailing on Plaintiffs’ Complaint

Code of Civil Procedure section 425.16(b)(1) states, “A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.”

In opposing a SLAPP motion, Plaintiffs must present admissible evidence and cannot rely on the allegations in its complaint. *Roberts v. Los Angeles County Bar Association* (2003) 105 Cal.App.4th 604, 613 to 614. Affidavits or declarations “on information and belief” are hearsay and inadmissible evidence to show a probability that plaintiff will prevail. *Evans v. Unkow* (1995) 38 Cal.App.4th 1490, 1497. But evidence otherwise excludable only because it lacks a proper foundation may be used if there is a high probability that plaintiff could establish a proper foundation at trial. *Fashion 21 v. Coalition for Humane Immigrant Rights of Los Angeles* (2004) 117 Cal.App.4th 1138, 1148 [videotape lacking foundation on SLAPP could be considered because of high probability tape could be authenticated at trial.]. Similar to a summary judgment motion, failure to raise evidentiary objections, or to seek and obtain rulings on such objections at the hearing, has been held to waive the objections so that they are not preserved for appeal. *Gallant v. City of Carson* (2005) 128 Cal.App.4th 705, 710.

The showing of minimal merit must be supported by admissible evidence which is tested by the same standard governing a motion for summary judgment, nonsuit or directed verdict. *Taus v. Loftus* (2007) 40 Cal.4th 683, 714.

Here, Plaintiffs’ first amended complaint alleges a single cause of action for tortious interference with prospective economic advantage.

“An interference with prospective economic advantage cause of action requires (1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) the defendant's intentional acts designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the defendant's acts. The plaintiff must also prove that the defendant engaged in an independently wrongful act in disrupting the relationship. In this regard, an act is

	independently wrongful if it is unlawful, that is, if it is proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard.” <i>SC Manufactured Homes, Inc. v. Canyon View Estates, Inc.</i> (2007) 148 Cal.App.4th 663, 673, fn. 7. Defendant contends the First Amended Complaint is a sham pleading because Plaintiffs have changed their legal theory from libel to interference with economic advantage. Defendant also contends this claim cannot be premised on interference with the market in general but must identify a specific economic relationship under <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 523. In opposition, Plaintiffs rely on the declaration of Plaintiff Vedadi, who generally disputes Defendant’s statements in the Yelp reviews and describes how it impacted Plaintiffs’ business financially. Assuming the facts in Plaintiff’s declaration to be true, Plaintiffs have not established a probability of prevailing. There is no evidence submitted to support Plaintiffs’ “proxy competitor” theory; i.e., that Plaintiff was acting as an agent for Plaintiffs’ competitors. Plaintiffs have not presented evidence of Defendant’s interference with a specific economic relationship or shown that Defendant’s acts were independently wrongful. Therefore, Plaintiffs have not demonstrated a probability of prevailing on their sole cause of action in the First Amended Complaint. <u>Request for Attorney Fees</u> Defendant may bring a separate noticed motion for attorney fees under the anti-SLAPP statute. As this case is related but NOT consolidated with Number 9 above, the granting of this anti SLAPP motion terminates this suit. Defendant is to prepare, file and serve a Proposed Judgment consistent with this ruling. An Order to Show Cause hearing re Submission of the Proposed Judgment is set for 1/13/2025 at 8:30 AM in Department C15. If the Proposed Judgment is submitted prior to that date, the Order to Show Cause hearing will go off calendar.
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		Moving party to give notice. Case Management Conference This case is related to number 9 above. If the parties submit on the tentative and/or the tentative becomes the order of the Court, the Case Management Conference will go off calendar as moot. If the parties do not submit on the tentative or the tentative does not become the order of the Court, the parties through counsel should attend the Case Management Conference, either remotely or in the courtroom.
11	Telles vs American Honda Motor Co., Inc. 2023-01350110	Motion to Compel Deposition (Oral or Written) Motion to Compel Production Plaintiff's Motion to Compel Further Responses to Requests for Production, set two, and Motion to Compel Deposition are CONTINUED to January 27, 2025, at 1:45 PM in Department C15. The parties have not engaged in sufficient efforts to meet and confer regarding the dispute. The parties are ordered to engage in further attempts to meet and confer, telephonically or in person, no later than 12/16/24. If supplemental responses are agreed to be provided, said verified responses are to be e-served no later than 1/13/2025. Failure by a party to attempt to meet and confer in good faith may result in sanctions. (<i>Code Civ. Proc.</i>, § 177.5.) No later than 1/16/2025, each side may submit a supplemental brief, not to exceed 5 pages, stating the scope of any remaining dispute, including identification of each discovery request that remains in dispute. The supplemental brief shall attach a copy of any further/supplemental responses served. The supplemental brief shall also address the status of the agreement, if any, regarding Defendant's PMK deposition. Clerk to give notice.